

Special Notice

SUBJECT* 438-20-601 Repair Research Bldg. Structural Open Market

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	68102-2077
SOLICITATION NUMBER*	36C26325R0035
RESPONSE DATE/TIME/ZONE	04-03-2025 10 AM CENTRAL TIME, CHICAGO, USA
ARCHIVE	99 DAYS AFTER THE RESPONSE DATE
RECOVERY ACT FUNDS	N
PRODUCT SERVICE CODE*	Z1DB
NAICS CODE*	236220
CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs Network 23 Contracting Office (NCO 23) 111 South 18th Plaza, Suite C53/C62 Omaha NE 68102-2077
POINT OF CONTACT*	Contract Specialist Diana Valdez Diana.Valdez2@va.gov 4020-996-3548

ADDITIONAL INFORMATION

AGENCY'S URL	
URL DESCRIPTION	
AGENCY CONTACT'S EMAIL ADDRESS	Diana.Valdez2@va.gov
EMAIL DESCRIPTION	Contract Specialist Email

Special Notice

DESCRIPTION

This notice is for informational purposes only and is not a request for submission of proposals.

This is a Notice of Intent published in accordance with Federal Acquisition Regulation (FAR) 5.101(a)(1) requiring the dissemination of information regarding proposed contract actions. This Notice of Intent is for a proposed award of a sole source, firm-fixed price contract under the authority of 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). Contracting Officers (COs) may use the non-competitive (sole source) procedures authorized in VAAR 819.7008 (DEVIATION)-Sole source awards to a certified service-disabled veteran-owned small business (SDVOSB). It is not a request for competitive quotes.

The Department of Veterans Affairs, Network Contracting Office 23 intends to award a sole source, firm-fixed price contract to Industrial Maintenance Services Inc (IMS) for structural repairs to the Research HVAC building a part of the Sioux Falls VA Medical Center in Sioux Falls, SD. The VA requires the structural repair services from IMS in accordance with 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in VAAR 819.7008 (DEVIATION)-Sole source awards to a certified service-disabled veteran-owned small business because during demolition of the initial Replace Research HVAC Project with IMS, (contract number 36C26319D0067, task order number 36C26322N0331), it was discovered that the Research Building is experiencing structural failure at walls due to unforeseen deficient construction when the building was originally built. Consequently, the walls are required to be structurally enhanced to accept resulting load of new roof mounted HVAC equipment that is to be installed under that contract. The initial project's contract with IMS has been suspended as it does not involve any work on the structure. If the contractor were to perform the required HVAC roof top installation, it would be a futile installation and potentially hazardous given the existing structural failures. It was discussed to seek bids for the structural repairs. The team under the existing contract has the capability and expertise to execute the required action and possess a firm understanding of the building, its characteristics, and the project. Therefore, it was determined that the most cost-effective situation is by sole source to the contractor currently most knowledgeable with the project and already mobilized. This reasoning is why a sole source contract to the SDVOSB IMS is being requested.

The North American Industry Classification System (NAICS) code for this requirement is 236220 and the service code is Z1DB.

This is a notice of intent of a sole source contract and not a request for competitive proposals. No solicitation is available for this requirement. If a firm believes that the VA should not pursue this sole source procurement with IMS, then they should submit information by 10:00am CST on Thursday, April 3rd, 2025, to Contract Specialist at diana.valdez2@va.gov. A determination by the Government to compete this proposed contract based upon responses to this notice is solely within the discretion of the Government.